

Line 1

Case Name: *Tom Lopes Distributing, Inc. d/b/a Western States Oil Company*
v.
et al.

Case No.: 16CV293258

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff and Judgment Creditor Tom Lopes Distributing, Inc. d/b/a Western States Oil Company (“Western”) now moves for an Order:

- (1) To amend the Assignment and Turnover Order to add Hovanes Nadjarian a/k/a MLN Tanklines, Inc., and MLN Tanklines, Inc.;
- (2) For Sanctions against HOVANES NADJARIAN for “disobey[ing] the Court’s Order Granting Motion Compelling Third Party MLN Tanklines, Inc. to Obey Subpoena for Business Records of Judgment Debtor Hovanes Nadjarian [of] June 22, 2025”; and
- (3) For award of Post-Judgment attorneys’ fees and costs for the period ending with the hearing on this Motion.

Amended Notice of Motion (the “Motion”) at 1:26-2:15 (filed: Jan. 5, 2026).

The Motion came on for hearing on June 12, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Western’s Motion is **DENIED** in all respects because it is little more than a thinly-veiled, untimely Motion for reconsideration of the Court’s Order filed and served on Western’s counsel on December 15, 2025 that DENIED the sanctions sought there by Western against the same Defendant Hovanes Nadjarian for violating the same June 22, 2025 Order that Western seeks sanctions here against the same Defendant again. In essence, it’s a repeat motion that asks the Court to reconsider its December 15, 2025 Order without meeting the standards for reconsideration under Code of Civil Procedure Section 1008. While Western euphemistically calls this unauthorized Motion “creative,”¹ it is in fact an abuse of the judicial process that disregards the virtue of finality and disregards the Court’s *file-stamped December 15, 2025* Order that Western goes so far as

¹ Western Memo. of Points & Authorities In Support of Motion at 10:17-18 (“Western Memo.”)(filed: Jan. 5, 2026).

to falsely say “*has not been filed*”² when Western filed this Motion on *January 5, 2026*. And while Court appreciates that Western strenuously disagrees with the Court’s December 15, 2025 decision denying sanctions requested there, Western has put forth no grounds that convince the Court to reconsider let alone reverse itself.

Important background facts that Western now skirts are that on July 14, 2025 (in this decade-old case filed in 2016), Western in a motion requested the following four elements of relief:

1. To Amend the Judgment *nunc pro tunc* to add MLN TANKLINES, INC.;
2. To Amend the Judgment Debtor’s name to HOVANES NADJARIAN, a/k/a MLN TANKLINES, INC.
3. Hold HOVANES NADJARIAN in contempt of Court; more specifically, Plaintiff asks this Court to “imprison” Mr. Nadjarian for “up to six months”; and
4. That HOVANES NADJARIAN pay Plaintiff \$4,744.83 in reimbursement for Plaintiff’s post-judgment attorney’s fees (\$ 3,160.00) and for Plaintiff’s costs incurred (\$1,584.83).

Amended Notice of Motion at 2:7-23 (filed: July 14, 2025). More specifically, regarding the contempt sanctions sought in item 3 above, Western sought to sanction Hovanes Nadjarian “for violating the Court’s Order Granting Motion Compelling Third Party MLN Tanklines, Inc. to Obey Subpoena for Business Records of Judgment Debtor Hovanes Nadjarian [of] June 22, 2025.” *Id.* at 2:11-13. After reviewing and carefully considering all the voluminous papers and record and giving all parties the full and fair opportunity to be heard at a hearing on October 17, 2025, the Court GRANTED the Relief sought in items 1, 2, and 4 above *but* DENIED the relief for contempt sanctions sought in item 3 above in a formal order that the Court signed on December 3, 2025, and which the Clerk filed and served on parties including on Western’s counsel Joseph P. Thompson on December 15, 2025—as is crystal clear from the file-stamped December 15, 2025 Order on the public portal of the Santa Clara County Superior Court that anyone worldwide accessing this case was able to see as of December 15, 2025.

Disregarding that file-stamped December 15, 2025 Order, Western now redundantly moves for largely-similar elements of relief:

1. To Amend the assignment and turnover order to add HOVANES NADJARIAN, a/k/a MLN TANKLINES, INC., and MLN TANKLINES, INC.;
2. For Sanctions against HOVANES NADJARIAN for “disobey[ing] the Court’s Order Granting Motion Compelling Third Party MLN Tanklines, Inc. to Obey Subpoena

² Amended Declaration of Joseph P. Thomson In Support of Motion at ¶ 5 (“Thompson Decl.”) (filed: Jan. 5, 2026).

for Business Records of Judgment Debtor Hovanes Nadjarian [of] June 22, 2025”; and

3. For an award of post-judgment attorneys’ fees for the period ending with the hearing on the motion and for reimbursement of costs incurred.

Amended Notice of Motion at 2:1-15

Regarding the first element of relief now sought, it is DENIED as redundant or unnecessary in light of the fact that the Court in its December 15, 2025 Order already GRANTED Western’s request to Amend the Judgment nunc pro tunc to add MLN TANKLINES, INC. *and* Amend the Judgment Debtor’s name to HOVANES NADJARIAN, a/k/a MLN TANKLINES, INC. And Western now, in the few perfunctory lines it spends in its new Motion on this amendment request, says nothing to convince the Court that this newly-requested amendment of the “assignment and turnover order” is necessary or justified in light of the relief already granted in the Court’s December 15, 2025 Order.

Regarding the second element of relief now sought, Western openly disagrees with the Court’s December 15, 2025 Order denying contempt sanctions for violating the June 22, 2025 Order by arguing that “failure of HOVANES NADJARIAN to obey the Court’s Order [of June 22, 2025] is *ample justification* for the Court *to hold him in contempt*, or, if the Court will not do so . . . impos[e] monetary sanctions[.]” Western Memo. at 11:23-25. And while the Court respects Western’s right vigorously to disagree with its decisions, here Western does not come close to satisfying the statutory requirements of Code of Civil Procedure Section 1008(a) for a motion for reconsideration. For this new Motion was *neither* made within 10 days after service by the Clerk of Court on December 15, 2025 of the file-stamped December 15, 2025 Order *nor* is based on new or different circumstances or law that change the Court’s mind at all. C.C.P. § 1008(a).

The Court’s careful review of the case docket confirms that the Court’s Order denying the contempt sanction was signed by Judge Parrett on December 3, 2025, and filed and served on Western by our Clerk’s Office on December 15, 2025. And this file-stamped December 15, 2025 Order was also posted on the Court’s public portal on December 15, 2025 for anyone worldwide, including Western’s counsel, to see on December 15, 2025. So the Court finds that Western’s statement that “as of this date” of January 5, 2026 when Western filed this Motion that the file-stamped December 15, 2025 Order “has not been filed”³ is false if not intentionally misleading. Western’s Memo. at 3:19-25.

And the Court views Western’s statement that the file-stamped December 15, 2025 Order “has not been filed” when Western filed this Motion on January 5, 2026 as misleading because Western’s “justification” for bringing this repeat Motion is that—while supposedly “waiting” for this Order to be filed—Western while searching the internet came across “evasion tactics” online of HOVANES NADJARIAN for which he should be

³ Thompson Decl. at ¶ 5 (“Thompson Decl.”) (filed: Jan. 5, 2026).

sanctioned for allegedly violating the same June 22, 2025 Order. Western Memo. at 3:19-25 & 5:23-6:6.

The Court is unimpressed by Western’s counsel’s “creative” attempt to skirt the Court’s December 15, 2025 Order denying Western’s Motion for contempt sanctions for Nadjarian’s alleged violation of the June 22, 2025 Order by claiming that (a) Western never saw the file-stamped December 15, 2025 Order when it filed this new motion on January 5, 2026, and (b) the Court’s carefully-considered December 15, 2025 Order should change because Western now asks for “monetary sanctions” instead of “contempt sanctions” based on alleged violation of the same June 22, 2025 Order. So Western’s request to for the Court to award “sanctions” now for allegedly violating the same June 22, 2025 Order that the Court already carefully considered but denied in its December 15, 2025 Order is respectfully DENIED in all respects now.

Regarding the last element of relief now sought asking for additional post-judgment attorneys’ fees and costs, that request is DENIED as well. In the broad exercise of its discretion, the Court declines to award any attorneys’ fees or costs now for the “13.20 hours” Western’s counsel unilaterally decided to spend surfing the web, e.g., looking at websites of the “California Secretary of State, and other search sites” for evidence of Nadjarian’s alleged violation of the June 22, 2025 Order. Amended Decl. of Joseph P. Thompson at ¶ 11 (filed on Jan. 5, 2026); & Supp. Decl. of Joseph P. Thompson at ¶ 22 (filed on March 30, 2026)(requesting an additional “10.0” hours for searching internet sites for evidence of Nadjarian’s alleged violation of the June 22, 2025 Order). In the broad exercise of its discretion, the Court declines to award Western these attorneys’ fees and costs sought now because the Court finds and rules that none of those 23.20 hours were *reasonably* incurred for this new motion that Western has lost in its entirety.

The Court also wishes to point out for the record that the voluminous *repeat* post-judgment arguments in this Motion—including more than five pages of single-spaced, dense text from a “previous (2022) . . . post judgment motion” that Western says it “now *repeats* for the benefit of the newly appointed judge”⁴ is not well taken at all by the undersigned Judge—who will not permit Western to relitigate *years* of post-judgment arguments now under the *guise* that it is to “help” the new judge who practiced complex civil litigation for over twenty years before taking the bench.

To the extent that Western undoubtedly disagrees with multiple decisions of multiple Judges of Santa Clara County Superior Court who have presided over this case since it was filed a decade ago in 2016, Western is free vigorously to pursue its appellate remedies (if any remain) with the Sixth Appellate District, the California Supreme Court, and the United States Supreme Court itself. But this trial court will not entertain any further improper and untimely motions for reconsideration to relitigate this decade-old case unless and until an appropriate appellate authority says otherwise. After all, in the eyes of the law, finality is a virtue.

⁴ Western Memo. at 5:17-19 (emphasis added)

Conclusion & Order

For the foregoing reasons, Western's Motion is **DENIED** in its entirety with prejudice.

SO ORDERED.

Date: June 12, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 2

Case Name: *Jinsong Hu v. Fidelity National Title Company*

Case No.: 24CV450398

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Jinsong Hu (“Plaintiff”) moves for relief under Code of Civil Procedure Section 473 for relief from the Court’s Order of October 3, 2025, which denied Plaintiff’s Motion for Reconsideration of the May 30, 2025 Order sustaining the Demurrer of Defendant Fidelity National Title Company (“Defendant”) to Plaintiff’s Complaint without leave to amend. (the “Motion”) at 3:4-7 (filed: Oct. 13, 2025). Plaintiff also moves for leave to file a First Amended Complaint adding a new cause of action for aiding and abetting fraud. *Id.* at 3:7-8.

The Motion came on for hearing on June 12, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Background

Plaintiff filed a Complaint on October 28, 2024 against Fidelity National Title Company asserting five causes of action for (1) professional negligence (2) negligent misrepresentation (3) violation of California escrow law (4) breach of duty as an escrow agent and (5) unfair business practices. Defendant demurred on all causes of action on December 20, 2024. On May 30, 2025, the Court sustained Defendant’s demurrer without leave to amend on all causes of action. On June 6, 2025, Plaintiff moved for reconsideration and leave to amend. On October 3, 2025, the Court denied Plaintiff’s motion for reconsideration without prejudice, noting that the Court at that time had not yet seen Plaintiff’s actual proposed amended Complaint—which Plaintiff at that time had not yet bothered to share with the Court—and so would not at that time rule on whether filing it would be futile.

On October 13, 2025, Plaintiff moved for relief from this Court’s order under Code of Civil Procedure section 473, also requesting leave to amend the complaint. For the reasons the Court will now explain, the Court DENIES Plaintiff’s Motion for Relief from this Court’s Order Denying Reconsideration and DENIES Plaintiff’s request for leave to file a First Amendment Complaint.

Analysis of the Requests for Judicial Notice

At the outset, the Court grants the requests for judicial notice in the Defendant’s Request for Judicial Notice in Support of Defendant’s Opposition to Plaintiff’s Motion for Relief. The Court grants the request for judicial notice of the Order Sustaining Demurrer